



File No.: EXP202305383

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 30, 2023, A.A.A. (hereinafter, the claimant) exercised the right of Erasure regarding their medical history against UNIDAD AVANZADA SALUD BUCODENTAL, S.L.P. (hereinafter, the respondent) without their request receiving the legally established response.

The claimant states that on May 10, 2019, they authorized the processing of their personal data by the respondent, UNIDAD AVANZADA SALUD BUCODENTAL, S.L.P., for the use of their image captured in activities and/or interviews related to the activity of (...), which could be published on the company's social media, corporate website, and publications, with the aim of disseminating such activities.

On February 7, 2023, they requested the erasure of the consent granted for the use of their personal image, stating that as of March 30, 2023, their images continue to appear.

SECOND: The respondent, aware of the claimant's request, on June 20, 2023, before the resolution that acknowledged the right and declared the complaint inadmissible, responded:

"...The entity did not act at any time with the intention of violating the rights of the claimant, nor has it obtained any benefit from these facts.

- That the immediate deletion of the claimant's image has been carried out, of which the organization had no knowledge.
- That the requests for the deletion of images from the social media of UASB have been addressed since the entity received the first notification from the Agency, responding to the claimant.
- That currently, GABINETE is in a procedure of claims and complaints to the company META to address the claimant's right to erasure on the social media owned by GABINETE.
- That the entity has not been sanctioned or warned previously for not having exercised a request for rights under Articles 15 to 22 of the GDPR..."

THIRD: As already mentioned in the previous section, the complaint was initially declared inadmissible by this Agency, and the claimant, disagreeing with the inadmissibility, filed a motion for reconsideration that was resolved favorably and led to the current complaint.

FOURTH: On December 20, 2023, the respondent was again notified of the complaint, the motion for reconsideration, and the favorable resolution of the motion, and a hearing process was opened for them to submit any arguments they deemed appropriate within ten working days, summarizing the following arguments:

The respondent continues to assert that it has deleted the images corresponding to YOU TUBE, but that, despite having attempted to do so, as documented, it continues to have problems deleting the claimant's image on the account that depends on META. Nevertheless, it states that it will continue to attempt this.

FIFTH: After examining the document submitted by the respondent, it is transferred to the claimant, so that, within ten working days, they may submit any arguments they consider appropriate. The claimant has not submitted any arguments.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it.

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the performance of their functions. In the event that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with the authority.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform data controllers who are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

a) for exercising the right of freedom of expression and information;

b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or

e) for the establishment, exercise or defense of legal claims."

V

Conclusion

During the processing of this procedure, the entity being complained about has demonstrated its attempt since the first request to erase the requested data, but it has not achieved this in its entirety. According to the entity being complained about, it is making every effort to comply with the right and has already done so in part. Therefore, we must assess to what extent we can estimate this complaint considering that the erasure is not complete due to reasons beyond the control of the entity being complained about, as outlined in the facts.

And all of this, without prejudice to the investigative and corrective powers that correspond to the AEPD in relation to possible infringements of the GDPR, regarding the difficulties encountered by the entity being complained about in erasing the personal data of the complainant.

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In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the complaint filed by A.A.A. against UNIDAD AVANZADA SALUD BUCODENTAL, S.L.P.

SECOND: TO NOTIFY this resolution to A.A.A. and to UNIDAD AVANZADA SALUD BUCODENTAL, S.L.P.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file

a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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Mar España Martí

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